Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

SECOND REGULAR SESSION

RESOLUTION NO. 385

RESOLUTION REQUESTING THE MINISTRY OF TRANSPORTATION AND COMMUNICATIONS (MOTC) AND THE BANGSAMORO AIRPORT AUTHORITY (BAA) TO COORDINATE WITH THE APPROPRIATE NATIONAL AGENCIES AND INTERNATIONAL BODY TO IMPLEMENT EFFECTIVELY THE MUSLIM MINDANAO AUTONOMY ACT NO. 324 OTHERWISE KNOWN AS THE TAWI-TAWI AIRPORT ACT OF 2015

WHEREAS, Section 38, Article XIII of Republic Act No. 11054 or the Bangsamoro Organic Law, provides that the Bangsamoro Government is expressly authorized "*to grant regional franchises, licenses, and permits to land, sea, and air transportation plying routes in the provinces or cities within the Bangsamoro Autonomous Region*" and to "*Exercise of quasi-judicial powers over the operation of land and water transportation in the Bangsamoro Autonomous Region in accordance with the rules of procedure established by the Parliament*";

WHEREAS, Section 3, Article V of the General Welfare Clause of the Bangsamoro Organic Law grants the Bangsamoro Government all the powers *"necessary, appropriate, or incidental for its efficient and effective governance and those which are essential to the promotion of general welfare"*;

WHEREAS, under the same provision, the Bangsamoro Government is obliged to *"enhance economic prosperity and social justice"* and *"preserve the comfort and convenience of its inhabitants"*;

WHEREAS, Section 2, Chapter 1, Title XV of Bangsamoro Autonomy Act No. 13 or the Bangsamoro Administrative Code, provides that the Ministry of Transportation and Communications (MOTC) is mandated to *"be the primary policy, planning, programming, implementing administrative entity of the Bangsamoro Government in the promotion, development, and regulation of dependable and coordinated networks of transportation and communications systems, as well as fast, safe, efficient and reliable transportation and communications services"*;

WHEREAS, Section 3 thereof enumerates the functions of the Ministry to include, among others, the following:

> *"a. Administer and enforce all transportation and communications laws, rules, and regulations within its jurisdiction and deputize appropriate law enforcement agencies for the purpose;*
>
> *f. Manage or supervise the landside operation of ports and airports in the Bangsamoro Autonomous Region, except those in economic zones;"*

WHEREAS, Section 19 thereof creates the Office of the Bangsamoro Airport Authority (BAA), which is empowered to *"manage, supervise, and control government airports within the Bangsamoro Autonomous Region"*;

WHEREAS, Section 1, Article XVIII of the Bangsamoro Organic Law provides that *"All subsisting laws enacted by the Autonomous Region in Muslim Mindanao Regional Legislative Assembly by virtue of authorities provided under Republic Act No. 6734, as amended by Republic Act No. 9054, shall be deemed valid and in effect, unless inconsistent with this Organic Law or repealed by-laws passed by the Parliament"*;

WHEREAS, the 8th Legislative Assembly of the defunct Autonomous Region in Muslim Mindanao (ARMM) enacted Muslim Mindanao Autonomy Act No. 324, otherwise known as the Tawi-Tawi Airport Act of 2015, which was approved by the Regional Governor Mujiv S. Hataman on December 17, 2015;

WHEREAS, said Act renamed Sanga-Sanga Airport in the Province of Tawi-Tawi into Tawi-Tawi Airport or TTA;

WHEREAS, the said Muslim Mindanao Autonomy Act No. 324 is neither inconsistent with the Bangsamoro Organic Law nor has it been repealed by the Bangsamoro Transition Authority acting as the Bangsamoro Parliament:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority, To request the Ministry of Transportation and Communications (MOTC) and the Bangsamoro Airport Authority (BAA) to coordinate with the appropriate national agencies and international body to implement effectively the Muslim Mindanao Autonomy Act No. 324 otherwise known as the Tawi-Tawi Airport Act of 2015.

RESOLVED FURTHER, That the MOTC, its Air Transportation Services (ATS), and the BAA, in coordination with the Department of Transportation and Communications (DOTC), the Air Navigation Services (ANS), and the Civil Aviation Authority of the Philippines (CAAP), shall cause the immediate and proper implementation of the provision of the Muslim Mindanao Autonomy Act No. 324.

RESOLVED FURTHERMORE, That a copy of this Resolution be furnished to the DOTC, the ANS, and the CAAP so that they can facilitate the updating of the Airport Code or location indicator of the Tawi-Tawi Airport in accordance with the International Civil Aviation Organization (ICAO), and International Air Transport Association (IATA).

RESOLVED FINALLY, To advise the MOTC, and its attached agencies: the ATS and the BAA, to inform all ministries, offices, agencies, and the public about the new name of the said airport.

ADOPTED, *Muharram* 28, 1445/August 15, 2023.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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